

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Plaintiff designates
Kings County as the
place of trial

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MAISHA HENRY,

Plaintiff,

Basis of venue is
county of occurrence

-against-

SUMMONS

THE CITY OF NEW YORK,
P.O. NATHANIEL LESTER,
SGT. JONATHAN CRUZ and
P.O. BOBBIE CROOKS,

Defendants.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 3, 2021

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

-The City of New York, c/o NYC Corporation Counsel, 100 Church Street, New York, NY 10007

-P.O. Nathaniel Lester, c/o NYPD 77th Detective Squad, 127 Utica Ave., Brooklyn, NY 11213

-Sgt. Jonathan Cruz, c/o NYPD Man Special Victims Squad, 137 Centre St., New York, NY 10013

-P.O. Bobbie Crooks, c/o NYPD 88th Pct., 298 Classon Ave., Brooklyn, NY 11205

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MAISHA HENRY,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK,
P.O. NATHANIEL LESTER,
SGT. JONATHAN CRUZ and
P.O. BOBBIE CROOKS,

Defendants.

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Plaintiff, by her attorneys SIVIN, MILLER & ROCHE, LLP, as and for her
complaint herein, alleges as follows, upon information and belief:

1. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
2. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).
3. That at all times herein mentioned, defendant P.O. Nathaniel Lester (hereinafter “Lester”) was and is an officer employed by the NYPD.
4. That at all times herein mentioned, Lester was acting within the course and scope of his employment with the NYPD.
5. That at all times herein mentioned, Lester was acting under color of state law.
6. That at all times herein mentioned, defendant Sgt. Jonathan Cruz (hereinafter “Cruz”) was and is a police sergeant employed by the NYPD.

7. That at all times herein mentioned, Cruz was acting within the course and scope of his employment with the NYPD.

8. That at all times herein mentioned, Cruz was acting under color of state law.

9. That at all times herein mentioned, defendant NYPD Officer Bobbie Crooks (hereinafter “Crooks”) was and is an officer employed by the NYPD.

10. That at all times herein mentioned, Crooks was acting within the course and scope of his employment with the NYPD.

11. That at all times herein mentioned, Crooks was acting under color of state law.

12. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, notices of claim and intention to sue were duly served upon and filed with defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notices of claim and intention to sue were presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the state-law causes of action accrued herein.

THE FACTS

13. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

14. That on or about October 27, 2018, at or around the intersection of Ashland Place and Dekalb Avenue, Brooklyn, NY, NYPD officers or officials, including but not limited to Lester, Cruz, and Crooks (hereinafter referred to collectively as “the officers”), without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed a crime, criminal offense, or violation, and without otherwise being justified, forcibly detained plaintiff and

the motor vehicle that plaintiff was operating, and then forcibly seized, grabbed, assaulted and battered, and otherwise used force against plaintiff that was excessive and was not justified.

15. That after seizing plaintiff, the officers, again without probable cause and without a warrant, formally arrested and imprisoned plaintiff and/or caused plaintiff to be imprisoned at various locations, including a police vehicle, a police precinct, Central Booking, and Riker's Island Correctional Facility.

16. That on or about October 28, 2018, the officers then initiated and/or caused to be initiated a criminal prosecution of plaintiff, charging plaintiff with crimes and violations of which she was innocent, and of which the officers did not have probable cause to believe plaintiff was guilty.

17. That in support of the criminal prosecution, Lester signed a Criminal Court Complaint in which he made sworn allegations against plaintiff that were untrue and that he knew to be untrue.

18. That the officers also generated paperwork that contained allegations against plaintiff that were untrue, and that the officers knew were untrue.

19. That among the fabricated allegations that were contained the police paperwork were allegations that plaintiff pushed, slapped, and bit Lester, that plaintiff kicked at the officers, and that plaintiff physically fought with the officers.

20. That the officers forwarded the aforementioned paperwork to the Office of the District Attorney, which actions independently constituted an initiation of the prosecution against plaintiff.

21. That the officers also repeated these fabricated allegations verbally to the Office of the District Attorney, which actions independently constituted an initiation of the prosecution

against plaintiff.

22. That the aforementioned fabricated allegations were material evidence that would likely influence a judge and/or jury as to plaintiff's innocence or guilt, and would likely influence the Court's setting of bail against plaintiff.

23. That the officers repeated these false allegations during their testimony before a Grand Jury.

24. That the aforesaid actions of the officers were undertaken collectively and in concert with one another.

25. That the aforesaid actions of the officers were intentional and malicious in nature.

26. That as a result of aforesaid actions of the officers, plaintiff was deprived of her liberty. Specifically, plaintiff's bail initially was set at a prohibitively high level, plaintiff was incarcerated for several days at Riker's Island Correctional Facility, and plaintiff was prosecuted for a period of more than two years, during which time she was required to make numerous court appearances and was restricted in her liberty and travel.

27. That on or about December 14, 2020, all of the criminal charges against plaintiff were dismissed, and the criminal proceeding terminated favorably to plaintiff.

28. That each of the officers herein observed the illegal and unconstitutional conduct of his fellow officers, had opportunities to intervene to stop and/or prevent that conduct, and deliberately and intentionally failed and refused to do so.

29. That Sgt. Cruz specifically authorized, endorsed, and approved the aforementioned actions of Lester and Crooks.

30. That as a result of the foregoing, plaintiff sustained severe physical and psychological injuries, suffered a significant deprivation of liberty, endured and continues to endure physical and emotional pain and suffering and loss of enjoyment of life, incurred and will continue to incur medical and healthcare related expenses and other economic loss, and has been otherwise damaged.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under New York State Law)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the actions of the officers constitute a malicious prosecution of plaintiff, for which the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of *respondeat superior*.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Arising out of Fourth and Fourteenth Amendment Violations)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the actions of the officers in forcibly seizing plaintiff without her consent, in assaulting and battering and using excessive force against plaintiff, in falsely arresting and imprisoning plaintiff, and in maliciously prosecuting plaintiff, constitute illegal and unreasonable seizures of plaintiff, in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Arising Out of Denial of Right to Fair Trial)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforesaid actions of the officers in fabricating evidence constitute a denial of plaintiff's right to a fair trial in violation of the Fifth, Sixth, and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Arising out of Failure to Intervene)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the officers' failure to intervene to stop and/or prevent the unlawful and unconstitutional actions of their fellow officers entitles plaintiff to recover damages from these defendants pursuant to 42 U.S.C. § 1983.

39. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against the officers, and attorney's fees against the officers pursuant to 42

USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
November 3, 2021

Yours, etc.

SIVIN, MILLER & ROCEH, LLP

By *Edward Sivin*

Edward Sivin

Attorneys for plaintiff

20 Vesey St., Suite 1400

New York, NY 10007

(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
November 3, 2021

Edward Sivin

EDWARD SIVIN